

Form 15-100A
(Subrule 15-100(2))

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER (1) _____

PETITIONER (2) _____

JOINT PETITION

NOTICE

A joint petition is only to be used if the parties agree on the remedies or relief being requested. If the parties have commenced a family law proceeding by a joint petition and subsequently a dispute arises between them, a party may serve and file a Notice of Withdrawal of Joint Petition in Form 15-100B with an Answer and Counter-Petition in Form 15-20.

TO THIS HONOURABLE COURT:

CLAIM

1 We ask this Honourable Court for the following remedy:
(Check all appropriate boxes for relief claimed and identify for which co-petitioner the relief is claimed.)

(a) *Divorce Act*

- ☐ Divorce
- ☐ Parenting Arrangements
 - ☐ Decision-making responsibility
 - ☐ Parenting time
- ☐ Other (*specify*) _____
- ☐ Support for _____ in the amount of \$ _____ per month payable by _____ to _____
- ☐ Child support under the Federal Child Support Guidelines payable by _____
 - ☐ Table amount
 - ☐ Special or extraordinary expenses
 - ☐ Other amount (*specify*) _____

(b) *The Family Property Act*

- ☐ Exclusive possession of family home in favour of _____
- ☐ Division of family home: _____ equal _____ unequal
- ☐ Division of family property: _____ equal _____ unequal

(c) *The Children's Law Act, 2020*

- ☐ Parenting Arrangements
- ☐ Decision-making responsibility
- ☐ Parenting time
- ☐ Guardianship over children's property
- ☐ Declaratory order respecting parentage
- ☐ Other (*specify*) _____

(d) *The Family Maintenance Act, 1997*

- ☐ Maintenance for _____ in the amount of \$ _____ per month payable by _____
- ☐ Maintenance for children under the Federal Child Support Guidelines payable by _____ to _____
- ☐ Table amount
- ☐ Special or extraordinary expenses
- ☐ Other amount (*specify*) _____

(e) ☐ Judicial separation under *The King's Bench Act*

(f) ☐ Nullity of marriage

(g) ☐ Relief under *The Dependants' Relief Act, 1996*

(h) Relief between persons who have lived together as spouses

- ☐ Interest in property
- ☐ Monetary compensation
- ☐ Other (*specify*) _____
- ☐ Other (*specify Act, if any, and particulars of the claim*) _____

(j) ☐ Costs (*specify particulars of the amount and basis for the claim*) _____

IN THE CIRCUMSTANCES set out below:

PARTICULARS OF MARRIAGE BREAKDOWN

2 Proof of marriage

- ☐ A certificate of marriage or a certificate of registration of marriage has been filed with the Court.

or

- ☐ An undertaking to file a certificate of marriage or a certificate of registration of marriage with the Court by _____ has been filed with the Court.
(date)

or

- ☐ It is impossible or impractical to obtain a certificate of marriage or a certificate of registration of marriage, and application has been made for an order dispensing with production of the certificate.

3 There has been a breakdown of the marriage by reason of us living separate and apart for more than one year. *(In a joint petition, the ground for divorce can only be that the parties have lived separate and apart for more than one year.)*

4 The facts on which our joint petition for divorce (or judicial separation or nullity of marriage) is based are:
(Set out fully but concisely all the material facts relied on, but not the evidence by which the facts are to be proved.)

5 The following efforts to reconcile have been made:

6 It is no longer possible for us to reconcile or resume cohabitation as spouses.

COLLUSION, CONDONATION AND CONNIVANCE

7 We have truthfully set out the facts establishing the breakdown of our marriage and we have not entered into any agreement, understanding or arrangement to make up or hide evidence or to deceive the Court.

MEDIATION AND FAMILY DISPUTE RESOLUTION

8 The family mediation services and family dispute resolution services used to negotiate matters pertaining to support or parenting are as follows:

PARTICULARS OF PROPERTY CLAIM

9 At the date of issue of this petition, we owned or held an interest in real and personal property, jointly or separately. The particulars of that property are set out in our respective Property Statements in Form 15-49 filed in this proceeding.

(A Property Statement need not be filed if the parties have agreed on the remedy and a Waiver of Property Statements in Form 15-50 has been filed.)

10 Regarding division of property:

- ☐ We are entitled to an equal distribution of the family home and/or the family property.

or

- ☐ The grounds for claiming that an equal distribution of the family home and/or the family property would be unfair and inequitable are as follows:
(Refer to specific sections of *The Family Property Act*.)

or

- ☐ The facts on which the claim for an interest in property or monetary compensation as persons who have lived together as spouses is based are:

PARTICULARS OF RELATIONSHIP

11 We:

- ☐ were married on _____ at _____.
(date) (place)

or

- ☐ are spouses as defined by:

- ☐ *The Family Maintenance Act, 1997*;
☐ *The Family Property Act*; or
☐ *The Dependants' Relief Act, 1996*; and

commenced cohabitation on _____ at _____.
(date) (place)

and/or

- ☐ are parents as defined by *The Children's Law Act, 2020*.

12 Regarding cohabitation:

- ☐ We ceased to cohabit as spouses on or about _____.
(date)

or

- ☐ We never cohabited as spouses.

PARTICULARS OF PARTIES

CO-PETITIONER (1)

13 My surname at birth: _____

14 My surname immediately before marriage: _____

15 My marital status at time of marriage: _____
(never married, divorced or widowed)

16 I was born: _____
(date)

17 (Complete this paragraph if the petition contains a claim for divorce.) On the day before my marriage to co-petitioner (2), my gender was:

☐ male ☐ female ☐ other

CO-PETITIONER (2)

18 My surname at birth: _____

19 My surname immediately before marriage: _____

20 My marital status at time of marriage: _____
(never married, divorced or widowed)

21 I was born: _____
(date)

22 (Complete this paragraph if the petition contains a claim for divorce.) On the day before my marriage to co-petitioner (1), my gender was:

☐ male ☐ female ☐ other

RESIDENCE

23 The address of co-petitioner (1) is: _____

24 The address of co-petitioner (2) is: _____

25 One or both of us have been ordinarily resident in Saskatchewan since: _____
(date)

CHILDREN

26 Regarding children of our relationship:

☐ We do not have any children in our care.

or

☐ The names, dates of birth and place of residence of all children who are in the care of either of us are:

27 We are claiming a remedy with respect to the following children:

and/or

28 We are not claiming any remedy with respect to the following children:

because:

29 The particulars of the current parenting arrangements of the children are as follows:

which is satisfactory (or unsatisfactory) for the following reasons:

30 We claim parenting of the following children on the following terms:

31 The proposed arrangement for parenting is in the best interests of the children for the following reasons:

32 The following changes of circumstances of the co-petitioners are expected to affect the children, or their parenting, in the future:

33 The nature of our relationship to and interest in the children is as follows:

34 Other than the co-petitioners, the following persons may have an interest in the parenting of the children or may have an obligation to support the children: (*State name, address and relationship to children.*)

35 The existing financial arrangements for the support of the children are as follows:

36 We propose that the financial arrangements for the support of the children, having regard to the remedy claimed, should be as follows:

37 (*If the amount claimed is different than the table amount under the Federal Child Support Guidelines.*) We are claiming child support in an amount different from the table amount determined under the Federal Child Support Guidelines due to:

- ☐ Child 18 years or older
- ☐ Income over \$150,000
- ☐ Split parenting time
- ☐ Shared parenting time
- ☐ Payor standing in place of a parent
- ☐ Special or extraordinary expenses, particulars of which are set out in Schedule 3 of our Financial Statements
- ☐ Undue hardship, particulars of which are set out in Schedule 6 of our Financial Statements

38 The facts to substantiate the proposed terms of child support are as follows:

SPOUSAL SUPPORT

39 The facts to substantiate the proposed support for (identify party for whom support is to be paid) are as follows: *(Make reference to that party's condition, means, needs and other circumstances.)*

PROCEEDINGS AND AGREEMENTS

40 The particulars and status of all other legal proceedings commenced between us with respect to the marriage, cohabitation, parenting, support, maintenance or division of property are:

41 The particulars and status of all other civil and criminal legal proceedings, past or ongoing, that may be relevant to the safety, security or well-being of the children are:

42 The dates of all written or oral separation, financial or parenting agreements between us are:

The agreement(s) pertain(s) to:

- ☐ parenting of the children
- ☐ child support
- ☐ spousal support
- ☐ division of property
- ☐ other (*specify*) _____

(If it is sought to incorporate provisions of a separation agreement in the judgment, refer to the specific provisions to be incorporated.)

43 The particulars of all other orders or agreements relating to any child in the care of either of us are:

44 The particulars and status of all other legal proceedings that have resulted in an existing order, recognizance or undertaking that restricts contact or communication between us, or any other member of our respective households, are: *(Include date and terms of order, recognizance or undertaking.)*

FINANCIAL INFORMATION

45 Financial documents:

☐ The Financial Statement in Form 15-47 of each co-petitioner is filed in this proceeding. *(A financial statement must be filed if the joint petition contains a claim for support, unless the only financial claim is for child support in the table amount, or if one of the following alternatives applies.)*

or

☐ We have agreed on the amount to be paid for child support and on the annual income of each of us who would be required to provide income information under the Federal Child Support Guidelines, and an Agreement as to Child Support in Form 15-48B *(with all required documents attached)* is filed in this proceeding.

or

☐ *(If there is no claim for child support.)* We have agreed on the amount to be paid for spousal support, and a Waiver of Financial Statements in Form 15-48A is filed in this proceeding.

46 The occupation of co-petitioner (1) is: _____

47 The place of employment of co-petitioner (1) is: _____.

48 The current annual income from all sources of co-petitioner (1) is estimated to be: \$ _____.

49 The occupation of co-petitioner (2) is: _____

50 The place of employment of co-petitioner (2) is: _____

51 The current annual income from all sources of co-petitioner (2) is estimated to be: \$ _____.

52 We are presenting this joint petition for divorce with full knowledge that:

- (a) each of us is entitled to obtain legal advice independently of the other;
- (b) each of us is entitled to be separately represented by a lawyer of our own choice; and
- (c) neither of us can legally be forced or required by the other to seek a divorce or to sign this joint petition for divorce.

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of co-petitioner (1))

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of co-petitioner (2))

**NEITHER SPOUSE IS FREE TO REMARRY UNTIL A JUDGMENT OF DIVORCE
TAKES EFFECT.**

STATEMENT OF CO-PETITIONERS

(To be signed by the co-petitioners in a proceeding under the Divorce Act.)

We, _____, the co-petitioners in this
proceeding, certify that we are aware of our respective duties pursuant to sections 7.1 to 7.5
of the *Divorce Act* (Canada).

(signature of co-petitioner (1))

(signature of co-petitioner (2))

INFORMATION NOTE

Sections 7.1 to 7.5 of the *Divorce Act* (Canada) state as follows:

Best interests of child

7.1 A person to whom parenting time or decision-making responsibility has been allocated in respect of a child of the marriage or who has contact with that child under a contact order shall exercise that time, responsibility or contact in a manner that is consistent with the best interests of the child.

Protection of children from conflict

7.2 A party to a proceeding under this Act shall, to the best of their ability, protect any child of the marriage from conflict arising from the proceeding.

Family dispute resolution process

7.3 To the extent that it is appropriate to do so, the parties to a proceeding shall try to resolve the matters that may be the subject of an order under this Act through a family dispute resolution process.

Complete, accurate and up-to-date information

7.4 A party to a proceeding under this Act or a person who is subject to an order made under this Act shall provide complete, accurate and up-to-date information if required to do so under this Act.

Duty to comply with orders

7.5 For greater certainty, a person who is subject to an order made under this Act shall comply with the order until it is no longer in effect.

STATEMENT OF LAWYER

(To be completed if the co-petitioners are represented by a lawyer in a proceeding under the Divorce Act, The Children's Law Act, 2020, The Family Maintenance Act, 1997 or The Family Property Act.)

I, _____, the lawyer for _____, the co-petitioners in this proceeding, certify to this Court that I have complied with the requirements of section 7.7 of the *Divorce Act* (Canada) in discussing with my clients the matters of spousal reconciliation, family dispute resolution services, and my clients' duties under the *Divorce Act*. *(If the circumstances of the case are of such a nature that it would clearly not be appropriate to so comply, set out the circumstances.)*

I further certify to this Court that I have complied with (as applicable):

- (a) subsection 20(1) of *The Children's Law Act, 2020*;
- (b) subsection 16(1) of *The Family Maintenance Act, 1997*;
- (c) subsection 44.1(1) of *The Family Property Act*;

in discussing with my clients the advisability of using alternative methods to resolve matters, and I have informed my clients of the collaborative law services and mediation services known to me that might assist in resolving matters. *(If the circumstances of the case are of such a nature that it would clearly not be appropriate to so comply, set out the circumstances.)*

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of lawyer)

This petition is issued at _____, Saskatchewan, this _____ day
of _____, 2 _____.

Local Registrar

CONTACT INFORMATION AND ADDRESS FOR SERVICE

If prepared by a lawyer for the party

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____

(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

or

If the party is self-represented

Name of party: _____

Address for service: _____

(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____